

County Compliance Matrix: AI Provisions in California Local Rules

To: Suzanne Babb

From: John A. Kelly

Date: August 4, 2026

Re: California county local rules on AI: compliance matrix (rules verified against July 2026 texts)

Verified against the full local rules texts collected July 2026 (58-county survey, maintained at github.com/johnakelly-yahoo-com/california-local-rules). Six counties have adopted AI provisions. Only one imposes a mandatory attorney disclosure duty, and only for ex parte materials. The rest codify verification and responsibility duties that section 128.7 and the Rules of Professional Conduct already imply.

Santa Clara. Rule: Local General Rule 10 | **Effective:** 7/1/2026 | **What it requires:** Review all AI-assisted submissions for accuracy and hallucinated output; filer certifies accuracy and bears responsibility. Rule 10(B)(5): AI or machine learning use in ex parte material (warrant affidavits, TRO and restraining order requests, provisional remedies, wiretap declarations) must be disclosed in the filing. | **Disclosure duty?: Yes, mandatory for ex parte material**

San Benito. Rule: Rule 10.3 | **Effective:** 1/1/2026 | **What it requires:** Full responsibility for AI-assisted content: accuracy of facts, validity of citations, appropriateness of arguments, completeness. Review and verify before submission; sanctions for inaccurate, misleading, or fabricated content. | **Disclosure duty?: No**

San Mateo. Rule: Rule 2.14 | **Effective:** 1/1/2026 | **What it requires:** Attorneys and self-represented litigants using AI must know and follow the court's posted expectations (court website; policy covers citation verification, human review, confidentiality). Check the posted policy before filing; it can change without a rules cycle. | **Disclosure duty?: No** (but posted policy compliance required)

Napa. Rule: Rule 3.10 | **Effective:** 1/1/2026 | **What it requires:** Presenting a paper certifies the filer carefully checked every case citation, fact, and argument. That responsibility may not be delegated to AI or any other technology. | **Disclosure duty?: No**

Sacramento. Rule: Rule 1.28 | **Effective:** 7/1/2026 | **What it requires:** Filer must personally read and verify every citation before filing, valid and accurately supporting the proposition, regardless of source (AI, research services, or otherwise). Sanctions available. | **Disclosure duty?: No**

Mendocino. Rule: Rules 1.54, 1.55 | **Effective:** 7/1/2026 | **What it requires:** No submission of documents containing AI-generated argument or citations unless the filer carefully checks every citation, fact, and argument. Non-delegable; the court assumes rigorous human review of every filed document. | **Disclosure duty?: No**

All other counties (incl. Sonoma). Rule: none as of 7/2026 | **What it requires:** Default duties: Code Civ. Proc. § 128.7 signature; Rules of Prof. Conduct 3.1, 3.3; Bus. & Prof. Code § 6068(d). Check department standing orders and judges' posted preferences, which move faster than local rules. | **Disclosure duty?: Judge-by-judge**

Statewide layer

- **Rule of Court 10.430 and Standard 10.80** (effective 9/1/2025): govern the courts' own AI use, not attorneys. Every California court that permits staff or judicial AI use had to adopt an internal AI policy by December 15, 2025. Relevance to counsel: judges may be using AI on your filings, and each court's internal posture varies.
- **No statewide attorney disclosure rule exists.** Attorney obligations remain in the Rules of Professional Conduct, section 128.7, local rules, and standing orders.

Pending developments to monitor

1. **SB 574 (Umberg).** Passed the Senate 39-0; Assembly deadline August 31, 2026. Would amend Code of Civil Procedure section 128.7 to require the attorney responsible for a filing to have **personally read and verified every citation**, regardless of whether AI was used, plus confidentiality and non-discrimination provisions and AI transparency duties for arbitrators. If enacted, the Sacramento and Napa approach effectively becomes statewide law.
2. **COPRAC proposed rule amendments.** At the California Supreme Court's direction, COPRAC circulated proposed comment amendments to Rules 1.1 (independent verification of AI output), 1.4 (client disclosure where AI use presents significant risk or materially affects the representation), 1.6 (exposing confidences to AI systems as a form of revealing), and 3.3 (comment period closed May 4, 2026; Board of Trustees action expected later in 2026). These would convert the 2026 Practical Guidance from soft guidance into rule commentary.
3. **New local rules cycles.** January 1 and July 1 each year. The six counties above all adopted within the last two cycles; expect more.

Maintenance note: re-verify this matrix against current local rules each filing cycle. The GitHub repository above is refreshed periodically and is the fastest cross-county check.